DC OSSE LEA AI Model Policy for Staff Use: Data and Student Privacy Passages

Excerpted verbatim from *LEA AI Model Policy for Staff Use, 2026-27 School Year, September 2026 (Office of the State Superintendent of Education, District of Columbia)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Passages marked [graphic] were transcribed from two-column layouts that the text extraction interleaved. The model policy covers staff use only. Bracketed text such as [replace with LEA name] is the document's own template placeholder.

Introduction: Executive Summary (excerpt)

Source: page 3

While new technologies have contributed to innovations in education, they can create additional risks, especially in the areas of student safety and privacy. Intentional policies and guidance can help mitigate the risks of AI use.

Guiding Principles for Developing AI Policy (excerpt)

Source: page 4

- **Provide training and opportunities to practice for LEA staff.** … Effective training for staff includes methods for using AI effectively and securely, as well as approaches for critically assessing AI outputs for accuracy and equity.

Legal Considerations

Source: page 5 [graphic]

[graphic] The adoption of any LEA AI Policy for Staff Use should be implemented after careful consideration and review of the following, but not limited to:

- [graphic] Family Educational Rights and Privacy Act (FERPA)
- [graphic] Children’s Online Privacy Protection Act (COPPA)
- [graphic] Children’s Internet Protection Act (CIPA)
- [graphic] Individuals with Disabilities Education Act (IDEA)
- [graphic] Protecting Students Digital Privacy Act of 2016
- [graphic] Health Insurance Portability and Accountability Act (HIPAA)

Considerations for Secure Use: Procurement

Source: page 5 [graphic]

[graphic] When evaluating AI tools for procurement, OSSE recommends that LEAs ensure that enterprise tools meet rigorous benchmarks prior to adoption.

[graphic] The following is a representative list of considerations prior to procurement:

[graphic] Training Protocols and Data Policy:

- [graphic] Protection of user generated data, including ensuring that vendors are not leveraging student data for model training, product improvement or purposes outside of the contracted service.

- [graphic] Protocols for data persistence and retrieval, including a technical understanding of how data is stored and deleted.

[graphic] Online Safety:

- [graphic] Inclusion of robust online safety features that are compliant with all District and federal laws.

[graphic] Cybersecurity:

- [graphic] AI systems that have verified compliance with recognized cybersecurity and privacy frameworks, such as the National Institute of Standards and Technology (NIST), COPPA, and FERPA.
- [graphic] Systems featuring robust access controls, including multi-factor authentication, and encrypt sensitive data both in transit and at rest.
- [graphic] Vendors providing clear procedures for vulnerability and incident reporting, supporting secure configuration and regular updates, and demonstrating compliance with security and liability requirements – with special attention given to protecting personally identifiable information (PII) and ensuring that AI tools are only used in approved, secure environments.
- [graphic] The presence of ongoing monitoring, and documented incident response plans, and prohibition of unauthorized or consumer-grade AI tools.

Professional Learning (excerpt)

Source: page 6

- Staff must demonstrate understanding of best practices for protecting student data, as required by all District and federal laws.

Effective AI training may include the following concepts:

- Best practices for protecting student information and PII.
- Mandatory cybersecurity training for staff that is renewed annually.

Model Policy: Ethical Principles and Definitions (excerpt)

Source: page 7 [graphic]

- [graphic] **Adopting emerging technologies requires an intentional approach to safeguard stakeholder safety and privacy:** While technology can improve staff efficiency and effectiveness, all staff within [replace with LEA name] are ultimately accountable for student safety, development, and outcomes. Decision-making related to implementing AI will be made with staff, student, and community safety and privacy at the forefront, and with careful consideration safeguarding student and staff PII.
- [graphic] **Enterprise tools:** Software products for which the LEA has a specific license that provides features and protections not available in free versions.
- [graphic] **Personally Identifiable Information (PII):** PII is information that, alone or in combination with other data, can be linked to a specific employee including but not limited to:
- [graphic] Name of employee or other family members.
- [graphic] Address of employee or other family members.
- [graphic] Personal identifier, such as a Social Security Number, unique student or staff identifier (such as the Office of the State Superintendent of Education's Unique Faculty and Staff Identifier), or biometric record; and indirect identifiers, such as date of birth, place of birth, or mother's maiden name.

Requirements for Staff Use (excerpt)

Source: page 8

Further, staff must demonstrate understanding of best practices for protecting student data, as required by all District and federal laws. All staff are required to renew this training annually.

[graphic] Staff members must: Use only approved AI tools. Protect confidential information.

Nothing detailed herein shall be construed as superseding local and federal laws related to staff or student privacy, procurement processes, or professional conduct.

No staff member should interpret this policy to allow use of non-approved enterprise tools for the purposes below.

Summary of Staff AI Use Allowances (excerpt)

Source: page 9

STAFF AI USE NOT PERMITTED

AI cannot be used for final decision-making regarding staff and students, or in situations that require special considerations for privacy or present risks to student well-being.

- Monitoring Students' Physical Presence

LIMITED STAFF AI USE PERMITTED: PROCEED WITH ENHANCED OVERSIGHT

For any use case involving PII, only enterprise tools that comply with all local and federal laws and regulations about student information can be used.

- Monitoring or Surveilling Students' Digital Activity

STAFF AI USE PERMITTED: PROCEED WITH AWARENESS

For any use case involving PII, only enterprise tools that comply with all regulations and best practices about student information can be used.

Red: Monitoring or Surveilling Staffs' and Students' Physical Presence and Behavior

Source: page 10

The use of AI for the purpose of monitoring or surveilling staffs' and students' physical presence and behavior includes tracking staffs' and students' physical presence within [replace with LEA name], allowing AI to access CCTV footage captured by [replace with LEA name] security systems, and use of biometric data for any monitoring purposes. This includes the use of personal AI-enabled recording tools such as wearables while on [replace with LEA name] premises.

STAFF AI USE NOT PERMITTED

No AI tools may be used for this purpose. Unauthorized AI features of existing enterprise tools are prohibited.

Rationale: Tools that monitor or surveil staff and students raise significant privacy concerns and AI tools may cause discriminatory outcomes. There is insufficient evidence about if and how AI tools can be used safely for this purpose.

Yellow: Limited Staff AI Use Permitted (excerpt)

Source: page 12

For any use case involving PII, only enterprise tools that comply with all local and federal laws and regulations about student information can be used.

Monitoring or Surveilling Staffs' and Students' Digital Presence

The use of AI for the purpose of monitoring or surveilling staffs' and students' digital presence includes monitoring or surveilling online activity of staff and students while on [replace with LEA name] premises or utilizing devices provided by [replace with LEA name].

LIMITED USE REQUIREMENTS:

- [Designated Staff Member] may utilize approved AI tools to assist with monitoring staffs' and students' digital activity while on LEA premises and during operating hours.
- AI surveillance is not a substitute for educator monitoring of student use of classroom devices or staff judgement about student wellbeing.
- Discipline decisions should never rely on data gathered by AI alone; all detected risks and misuse reports will be elevated to [Designated Staff Member] who will then follow [replace with LEA names] established discipline, safety, and mental health policies.
- Staff must keep data on AI surveillance use and continually monitor for equity and efficacy of use.
- Staff, students, and families will be notified about the tools and purposes for AI use in virtual surveillance, including which tools are being deployed, why they are being utilized, and what data is collected while monitoring a student's virtual activity.

Rationale: Schools already monitor student online activity to remain in compliance with CIPA, and acceptable use policies preclude the expectation of privacy on [replace with LEA name] issued devices. Tools that scan for signs of cyberbullying and mental health crises can supplement systems already in place to alert staff and families to risks students face in digital spaces. However, these tools may carry significant privacy risks. All virtual surveillance uses must comply with existing regulations around staff and student privacy, discipline and legal requirements for surveillance and data collection.

Drafting Individualized Education Programs (IEPs) (excerpt)

Source: page 13

- For any use case involving PII, only enterprise tools that comply with all regulations and best practices about student information can be used.
- Use of AI may never violate student protections provided under IDEA.

Reviewing and Grading Student Work; Supplemental Coaching (excerpts)

Source: page 14

- Staff must ensure student identifying data including race and ethnicity are not disclosed to the AI tool, and all outputs must be evaluated to ensure equity in feedback, rigor, and expectations for all students.
- For any use case involving PII, only enterprise tools that comply with all regulations and best practices about student information may be used.

Green: Staff AI Use Permitted (excerpt)

Source: pages 15 (lesson plans), 16 (customizing materials), 17 (data sets)

For any use case involving PII, only enterprise tools that comply with all regulations and best practices about student information can be used.

Drafting Lesson Plans

- Lesson plans should always be developed without utilizing prompts that invite an AI tool to consider student demographic information.

Rationale: Educators can use AI to improve lesson plans without sharing PII or relying on AI for final decision-making.

Customizing Student-Facing Lesson Materials

- AI may support educators in developing differentiated and customized student-facing materials if it does not make recommendations for individual students or if it does not utilize PII and the educator reviews and refine the AI-generated suggestions.

Analyzing Data Sets

- For any use case involving PII, only enterprise tools that comply with all regulations and best practices about student information may be used.